

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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JOHN ROGERS,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
ANTHONY WAITE, SHIELD NO. 9649, NYPD
POLICE DETECTIVE MAHMUDUL BHUIYAN,
SHIELD NO. 486, NYPD SERGEANT SAMUEL HUI,
SHIELD NO. 3588, and NYPD POLICE OFFICERS
JOHN DOES NUMBERS ONE THROUGH TEN,

Defendants.
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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above-named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
September 2, 2022

Yours, etc.
Cary London
Cary London, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 221-1000

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICER ANTHONY WAITE, Shield No. 9649, 67th Detective Squad –
2820 Snyder Avenue, Brooklyn, New York 11226

NYPD POLICE DETECTIVE MAHMUDUL BHUIYAN, Shield No. 486, 75th Precinct –
1000 Sutter Avenue, Brooklyn, New York 11208

NYPD SERGEANT SAMUEL HUI, Shield No. 3588, 75TH Precinct – 1000 Sutter Avenue,
Brooklyn, New York 11226

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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JOHN ROGERS,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
ANTHONY WAITE, SHIELD NO. 9649, NYPD
POLICE DETECTIVE MAHMUDUL BHUIYAN,
SHIELD NO. 486, NYPD SERGEANT SAMUEL HUI,
SHIELD NO. 3588, and NYPD POLICE OFFICERS
JOHN DOES NUMBERS ONE THROUGH TEN,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff JOHN ROGERS, by his attorneys, Shulman-Hill, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On 08/06/2019, at approximately 1:00 A.M., Plaintiff John Rogers, while lawfully in the vicinity of Belmont Avenue and Pine Street, County of Kings, New York, was subject to an unlawful arrest and detention by defendant Police Officers. In addition, Plaintiff was subjected to three (3) days in unlawful custody at the 75th Precinct, Kings County Central Bookings and Rikers Island, resulting in lasting mental and emotional injury. Plaintiff was deprived of his constitutional, common law and statutory rights when the individual defendants unlawfully stopped, detained, subjected to excessive force, passed along false accusations to prosecuting attorneys, and engaged in the malicious prosecution of Plaintiff, in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff John Rogers is a resident of the state of New York.

3. NYPD Police Officer Anthony Waite, Shield No. 9649, is and was at all times relevant herein an Officer with the New York City Police Department.

4. NYPD Police Officer Anthony Waite, Shield No. 9649, is being sued in his individual and official capacity.

5. At all times relevant herein, upon information and belief, NYPD Police Officer Anthony Waite, Shield No. 9649, was assigned to the NYPD 75th Precinct.

6. Currently NYPD Police Officer Anthony Waite, Shield No. 9649 is at 67th Precinct Detective Squad.

7. NYPD Police Detective Mahmudul Bhuiyan, Shield No. 486, is and was at all times relevant herein an Officer with the New York City Police Department

8. NYPD Police Detective Mahmudul Bhuiyan, Shield No. 486, is being sued in his individual and official capacity.

9. Currently and at all times relevant herein, upon information and belief, NYPD Police Detective Mahmudul Bhuiyan, Shield No. 486, was assigned to the NYPD 75th Precinct.

10. NYPD Sergeant Samuel Hui, Shield No. 3588, is and was at all times relevant herein an Officer with the New York City Police Department.

11. NYPD Sergeant Samuel Hui, Shield No. 3588, is being sued in his individual and official capacity

12. Currently and at all times relevant herein, upon information and belief, NYPD Sergeant Samuel Hui, Shield No. 3588, was assigned to the NYPD 75th Precinct.

13. NYPD Police Officers John Does Numbers One through Ten are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

14. NYPD Police Officers John Does Numbers One through Ten are being sued in their individual and official capacities.

15. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

16. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

17. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.

18. In accordance with New York State law and General Municipal Law Section 50, Plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on July 15, 2022.

19. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.

20. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

21. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

22. . On August 6, 2019, at approximately 1:00 A.M., Plaintiff John Rogers, while lawfully in the vicinity of Belmont Avenue and Pine Street, County of Kings, New York, New York, when the defendant Police Officers unlawfully arrested Plaintiff without probable cause or legal justification.

23. It was at this point that the defendant officers began to arrest the plaintiff, restraining him with metal handcuffs and subjecting him to unlawful pat-down search.

24. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

25. At no point did Defendant Officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

26. Plaintiff did not resist arrest.

27. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by the defendant officers without legal justification or probable cause, placed in the back of an NYPD vehicle, and transported to the 75th Precinct against his will.

28. Upon his arrival at the 75th Precinct, the Plaintiff was fingerprinted, photographed, and placed in a holding cell.

29. The following day, the plaintiff was transported to Kings County Central Bookings, processed, and placed in another holding cell.

30. While Plaintiff was in custody, the defendant police officers provided the Kings County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiff committed a crime.

31. Specifically, the defendant police officers falsely stated to the Kings County District Attorney's Office that Plaintiff was engaged in Criminal Possession of a Firearm.

32. On August 7, 2019, the plaintiff was arraigned in criminal court, charged with crimes he did not commit, his bail was set, and he was remanded to Rikers Island Correctional Facility.

33. After approximately two (2) days in unlawful custody at Rikers Island, the plaintiff was able to make bail and was released on his own recognizance.

34. The plaintiff made approximately twelve (36) more court appearances pertaining to these false charges.

35. A jury trial was conducted on this case, and on March 8, 2022, all charges against the plaintiff were dismissed and sealed as Plaintiff was found Not Guilty of all charges.

36. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably arresting, confining, and using excessive force against Plaintiff.

37. The unlawful arrest, confinement, and use of excessive force by the individually named defendants caused Plaintiff to sustain economic, psychological, and emotional trauma.

FIRST CAUSE OF ACTION
Unlawful Stop, Question, and Search

38. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

39. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

40. The conduct of defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

41. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

42. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

43. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SECOND CAUSE OF ACTION

Violation of Fourth and Fourteenth Amendment Rights: Unlawful Seizure and Deprivation of Liberty

44. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

45. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

46. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

False Imprisonment

47. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

48. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

49. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

50. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

51. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

52. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FOURTH CAUSE OF ACTION **Negligent Infliction of Emotional Distress**

53. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

54. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff.

55. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

56. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

57. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

58. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

59. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

FIFTH CAUSE OF ACTION **Negligent Hiring, Retention, Training and Supervision**

60. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

61. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

62. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

SIXTH CAUSE OF ACTION **Failure to Intervene**

63. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

64. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

65. Defendants failed to intervene to prevent the unlawful conduct described herein.

66. As a result of the foregoing, Plaintiff suffered serious, debilitating and permanent injury, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subject to other physical constraints.

67. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

68. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

69. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

70. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

**Violation of Fourth And Fourteenth Amendment Rights:
Denial of Right to Fair Trial/Due Process**

71. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

72. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.

73. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the New York County District Attorney's Office.

74. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the New York County District Attorney's Office.

75. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free of deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

76. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

77. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

78. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

79. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to: economic, emotional, and psychological injuries.

EIGHTH CAUSE OF ACTION
Malicious Prosecution

80. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

81. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.

82. Defendants commenced and continued a criminal proceeding against Plaintiff.

83. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which he was prosecuted.

84. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

NINTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

85. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

86. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of his person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

87. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered physical, economic and emotional injuries, as well as a deprivation of liberty.

88. As a result of the above tortious conduct, Plaintiff was caused to suffer mental, economic, and emotional injuries, as well as a deprivation of liberty.

89. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

90. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff JOHN ROGERS demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988 and 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 801 *et seq.*.

Dated: New York, New York
September 2, 2022

By: Cary London
Cary London, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 221-1000

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICER ANTHONY WAITE, Shield No. 9649, 67th Detective Squad –
2820 Snyder Avenue, Brooklyn, New York 11226

NYPD POLICE DETECTIVE MAHMUDUL BHUIYAN, Shield No. 486, 75th Precinct –
1000 Sutter Avenue, Brooklyn, New York 11208

NYPD SERGEANT SAMUEL HUI, Shield No. 3588, 75TH Precinct – 1000 Sutter Avenue,
Brooklyn, New York 11226

ATTORNEY'S VERIFICATION

CARY LONDON, an attorney duly admitted to practice before the Courts of the

State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
September 2, 2022

Cary London
CARY LONDON, ESQ.